ITA1435 - Ethical hacking

CO1 - Assessment Tool - 3

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1) your client's competitor secretly offers you money to share findings from a penetration test you conducted for the client. Analyze this scenario in term of professional ethics, confidentiality, potential legal consequences.

A. This scenario is a serious professional and ethical violation. The penetration tester has a duty to protect the client's security findings and must not disclose them to a competitor for personal financial gain.

1. Professional Ethics

→ The tester must act with integrity, honesty, and professional responsibility.

→ Accepting money from the competitor creates a conflict of interest.

→ Professional cybersecurity codes emphasize maintaining confidentiality and acting in the client's interest.

→ The correct action is to refuse the payment and not share any findings.

→ The tester should report the attempted bribery or conflict to their employer/supervisor where appropriate, the client.

2. Confidentiality :-

Penetration test reports may contain highly sensitive information such as:

→ Vulnerabilities and security weakness
→ IP addresses and system architecture.
→ Credentials or exposed data.
→ Exploitation methods and evidence.
→ Recommendation for fixing vulnerabilities.

These findings should be shared only with authorized parties. professional penetration-testing guidance specifically emphasizes not discussing client findings with third parties.

3. Potential legal consequences

The tester could face consequences under the confidentiality provisions of the contract/NDA, including termination, damages and legal action.

In India, depending on the facts, section 72A of the Information Technology Act, 2000 addresses disclosure of information obtained while providing services under a lawful contract when the disclosure breaches the contract and causes or is likely to cause wrongful loss or wrongful gain.

other. contractual, data-protection, or criminal/ civil. provisions may also apply depending on what information was disclosed and how it was used.

4. correct Ethical Response

The tester should :-

Receive Offer → Refuse payment → Do not disclose findings → preserve evidence of the offer → inform supervisor/legal authority → continue protecting client confidentiality.

Conclusion :-

Accepting money and sharing penetration-test findings would violate professional ethics, confidentiality obligation and potentially the law. A professional penetration tester must put the client's security, trust, and confidentiality above personal financial gain.